SERVICES AGREEMENT

This Services Agreement is made and entered into as of _____, 2019 (the "**Effective Date**") by and between **TRAX RETAIL, INC.**, a Delaware corporation, having its principal offices at 1960 Satellite Blvd, Suite 4100, Duluth, Georgia 30097 ("**Trax**"); and _____, a corporation organized and existing under the laws of _____, having its principal offices at _____ (the "**Customer**").

WHEREAS, Trax owns a platform for the collection of images and data by third party's users ("**Crowd Platform**");

WHEREAS, Trax has developed a proprietary image recognition platform for in shelf tracking and in-store execution service;

WHEREAS, Trax makes available such platform and related services to its customers on a software-as-a-service (SaaS) basis; and

WHEREAS, Customer desires to obtain, and Trax desires to grant to Customer, the right to access and use such platform and services, in accordance with the terms and conditions set out in this Agreement and in the respective SOW(s).

NOW, THEREFORE, the parties have agreed as follows:

1. DEFINITIONS

1.1 In this Agreement, unless the context otherwise requires or expressly stated otherwise: singular terms include the plural and vice versa; the words "include" and "including" will not be construed as terms of limitation; each of Trax and Customer is a "party" and together the "parties".

1.2 When used in this Agreement, the capitalized terms below shall have the following meanings:

"**Agreement**" means this agreement and all exhibits attached hereto.

"**APIs**" means application programming interface which is a set of routines, protocols, and tools that allow third parties to send Trax image data and/or Customer Content for processing and to receive Deliverables from Trax, as described in Trax developers' site at https://services.traxretail.com.

"**Brand Hunt**" means a service of initial category creation and setup which is done by registering all the category's SKUs and their reference data.

"**Brand Watch**" means a service which includes a continuous in-market tracking of the covered categories and brands for new SKUs and designs to maintain the most up-to-date product repository.

"**Business Day**" means a day on which commercial banks are open for business in Singapore and the respective Territory as agreed in the relevant SOW.

"**Change**" has the meaning specified in Section 2.4 below.

"**Change Request**" has the meaning specified in Section 2.4 below.

"**Confidential Information**" has the meaning set forth in Section 9.1.

"**Customer Application**" means software developed by the Customer.

"**Customer Content**" means all of Customer's data, information, text and images to the extent that these are (i) related to Customer's SKUs, and (ii) uploaded or routed to the System by Customer or transmitted by Customer to Trax while using the Services.

"**Deliverables**" means the analysis and reports being the output of Services provided by Trax to Customer under this Agreement that relate specifically to the Customer Content. For the avoidance of doubt, "Deliverable" does not include the System or Services or any Intellectual Property Rights of Trax or tangible embodiments thereof.

"**Documentation**" means the documentation which is provided by Trax as part of the Services, which may include user guides, installation instructions and training materials, but excluding Trax's source code.

"**Crowd**" means third-party users of the Crowd Platform for collection of images and data.

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"**Intellectual Property Rights**" means all intellectual, moral, industrial and/or proprietary rights recognized under any applicable law anywhere in the world, whether issued or pending, registered or unregistered, including without limitation: (i) all forms of patents; (ii) rights to inventions and discoveries (whether patentable or not); (iii) copyrights and neighboring or related rights; (iv) trademarks, business names, logos, service marks, trade names and domain name registrations; (v) design rights (whether or not capable of registration); (vi) database rights; (vii) trade secrets and all rights in know-how, Confidential Information or proprietary information; (viii) rights in get-up and trade dress, goodwill and the right to sue for passing off or unfair competition; and (ix) any rights analogous to those mentioned herein; all derivative works thereof; and any current or future applications, renewals, extensions, continuations, divisions, re-exams and reissues thereof.

"**Services**" has the meaning specified in Section 2.1 below.

"**Services Fees**" has the meaning specified in Section 4.1 below.

"**SKU**" means a Stock Keeping Unit - a unique identifier or code that refers to Customer's products or items sold at a Store.

"**SOW**" means a Scope of Work as further specified in Section 2.1 below.

"**Store(s)**" means a retail store(s) in which the SKUs are sold.

"**System**" means, collectively, (a) X-Suite Platform (including Trax Mobile Application), (b) the API, (c) the Crowd Platform, and (d) all Updates.

"**Territory**" means the site(s), Stores, region(s), country or countries set out in the respective SOW.

"**Trax Mobile Application**" means Trax's proprietary mobile application, including any Updates thereto, that is intended for installation on the Users' mobile devices for the purpose of enabling access to, and use of, the X-Suite Platform.

"**X-Suite Platform**" means Trax's proprietary multi-module web platform, including any Updates thereto, which may be made available to Customer as part of the Services, as set forth in the applicable SOW(s), and is intended to provide Customer the ability to set events and targets and to review, configure, track and monitor the Customer Content and/or the Deliverables, depending on the modules chosen by Customer as set out in the applicable SOW(s).

"**Update(s)**" means a modification or an upgrade to the System, which incorporates corrections of errors and/or which provides functional or performance improvements and/or enhancements, made by Trax from time to time without notice to Customer, as part of maintenance services for the System.

"**User**" means each individual end user whom Customer has authorized to use the Trax Mobile Application, X-Suite Platform and/or Services, as designated by Customer, and who have been issued user IDs and passwords by Trax. Users may include Customer's employees, contractors and agents.

1.3 The following Exhibits are incorporated into this Agreement and shall be deemed to be an integral part hereof:

Exhibit "**A**" – Statement of Work.

Exhibit "**B**" – Change Request Form.

Exhibit "**C**" – Professional Services Terms and Conditions.

2. THE SERVICES

2.1 Statements of Work. Subject to the terms and conditions of this Agreement and conditioned upon Customer's compliance therewith (including, without limitation, the payment of the Services Fees), Trax will provide Customer with the services set out in Statement of Work(s) executed by the parties from time to time during the Term (each, an "**SOW**") and attached to this Agreement as subsequently numbered SOWs (collectively, the "**Services**"). Each SOW shall reference this Agreement, shall be deemed to incorporate the terms and conditions of this Agreement, and will be binding on the parties only upon the execution by the duly authorized signatories of both parties. In case of any inconsistency or contradiction

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between the provisions of this Agreement and the provisions of an SOW, the provisions of this Agreement shall prevail as to the subject matter of such inconsistency or contradiction. The Services shall be utilized by Customer (or by its affiliates listed in Annex 2.1 attached hereto) solely in connection with Customer's authorized use of the X-Suite Platform.

2.2 Configuration. As part of the Services, if applicable, Customer may make certain configuration to some of the features/functionalities of the X-Suite Platform, including without limitation, configuration and updates made by Customer in connection with the Stores, SKUs, routes or Users (the "**Configuration**"). Customer acknowledges that Trax will provide the Services to Customer based on and in reliance on the Configuration without any investigation of any kind of the Configuration, including without limitation, its accuracy, completeness, fitness for Customer's needs or otherwise. It is agreed that Trax shall not be liable for any loss, expense or damage incurred or suffered by Customer or any other third party arising out of or in connection with the Configuration or any Services based on the Configuration, and Customer shall have no claim and/or demand with respect thereof.

2.3 User IDs and Passwords. Customer will be required to register in order to access and use the Services. As part of the registration process, Customer will be required to designate the Users and provide such contact information, provided that Customer will not provide to Trax any personal data, but will provide solely the necessary unidentifiable details of the Users for access credentials to the X-Suite Platform, i.e. work email address and either forename or surname. Customer will not permit any person to use a User's credentials, whether for access to the X-Suite Platform and Services or otherwise, unless it is such User's own credentials. Customer shall implement appropriate security measures and access procedures to ensure that the X-Suite Platform and Services are accessed only by Users. Customer is responsible for maintaining the confidentiality of all user credentials and passwords, and agrees not to transfer or disclose such User IDs and passwords to any third-party. Customer agree to immediately notify Trax of any unauthorized use of User IDs, passwords, or any other breach of security related to Customer's account. Trax shall not be liable for any loss or damage arising from Customer's failure to comply with any of the foregoing obligations.

2.4 Change Requests.

(a) Customer may request a change in the scope of Services, including different and/or additional Deliverables (a "**Change**"), by submitting details of such requested Change to Trax in the change request form attached hereto as Exhibit B (a "**Change Request**").

(b) Trax shall, within a reasonable time, provide a written estimate to Customer of: (i) the time likely to be required to implement the Change; (ii) any variations to the Services Fees required in order to implement such a Change; (iii) any further information required by Trax in order to implement the Change; and (iv) any other effect the Change might have on this Agreement and/or the respective SOW.

(c) Trax may, at its sole discretion, accept or reject a Change Request for any reason, and in no event shall be obligated to accept and/or implement any such Change Request (or any part thereof).

(d) Each Change Request, once executed by the parties' duly-authorized representatives, and this Agreement shall constitute the entire agreement between the parties relating to a particular Change Request. In case of any inconsistency or contradiction between the provisions of this Agreement and the provisions of a Change Request, the provisions of this Agreement shall prevail as to the subject matter of such inconsistency or contradiction.

2.5 Professional Services. Customer and Trax may, from time to time, agree on the provision of advanced services by Trax to Customer by executing a work order in a form acceptable to Trax (the "**Professional Services**"). Professional Services may include the modification or customization of any part of the System, the provision of certain technical assistance, including with respect to integration, customization or data migration in connection with the System, or the provision of other services. Any Professional Services will be set forth in writing in such work order and will be subject, in addition to the terms and conditions of this Agreement, to the terms and conditions set out in Exhibit C.

3. GRANT OF RIGHTS; RESTRICTIONS

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3.1 Grant of Rights. Subject to the terms and conditions of this Agreement and conditioned upon Customer's compliance therewith (including payment by Customer of all Services Fees), Trax grants to Customer a personal, non-exclusive, revocable, non-transferable and non-sublicensable limited right, during the Term, to permit Users to: (i) install the Trax Mobile Application on mobile devices owned by Customer or Users or connect the Customer Application to the X-Suite Platform via the API (if applicable); (ii) use the Trax Mobile Application on such devices solely for purposes of accessing the X-Suite Platform, to the extent included as part of the Services, as set forth in the applicable SOW(s) in order to enable the provision of the Services to Customer, and (iii) access, review and print the Deliverables on the X-Suite Platform via a browser (or through the API if applicable); all solely for Customer's own internal business operations within the Territory, up to the usage capacity set forth in the applicable SOW(s), and in accordance with the Documentation.

3.2 Use Restrictions. Customer shall not (and shall not permit any third party to): (a) copy, modify, adapt, translate, or create derivative works based on the System or Services (or any part thereof), except as expressly permitted in this Agreement; (b) decompile, disassemble, decode or otherwise reverse engineer or attempt to discover any source code, algorithms, methods or techniques used or embodied in the System or Services (or any part thereof), except as and only to the extent any of the foregoing restrictions are specifically prohibited by applicable law or by the applicable licensing terms governing use of any open source components included with the System (with respect to the respective open source components governed thereby); (c) loan, rent, lease, sublicense, resell, distribute or otherwise transfer or allow access to the System or Services (or any part thereof) to any third party, or use the System or Services (or any part thereof) for a commercial timesharing, service bureau or outsourcing arrangement; (d) access or use the System or Services to develop or offer a competing product or service, or for any benchmarking or competitive purposes; (e) use the System or Services to create, edit or display materials or content other than Customer Content; (f) use the System or Services to transmit, store or display any content that is defamatory, obscene or fraudulent, violates any law or regulation or infringes any third party Intellectual Property Rights; (g) interfere with or disrupts the System or any services or offerings of Trax or any associated servers or networks; (h) create any unauthorized Internet "links" to the System or Services, or "frame" or "mirror" any content of the System or Services on any other server or device; (h) copy any ideas, features, functions or graphics of the System or Services; (i) remove or alter any legal or proprietary notices, patent numbers, trademarks, trade names or other identifying marks, symbols or legends included in and/or otherwise affixed to the System or Services; (j) represent to any third party that Customer possesses any proprietary interest in the System or Services (or any part thereof); or (k) access or utilize the System or Services in any manner inconsistent with or not expressly allowed under this Agreement. Customer acknowledges and agrees that Trax has the right, from time to time, to conduct an electronic audit with respect to Customer's use of the System and Services and its compliance with the terms and conditions of this Agreement and any SOW.

3.3 Responsibility for Users. Customer shall ensure that any Users accessing or using the System and/or Services will do so strictly in accordance with the terms and conditions of this Agreement. Any use of the System or Services by a User contrary to the provisions of this Agreement will be deemed as a breach by Customer of this Agreement. Further, Customer shall notify Trax promptly and in writing if Customer suspects or becomes aware of any unauthorized access to, or use of, the System or Services.

3.4 Suspension of Access. If Trax is made aware or believes in good faith that Customer's or Users' conduct, or any Customer Content, may (a) violate the terms of this Agreement, (b) violate any law, regulation or rights of a third party, including without limitation Intellectual Property Rights, (c) pose a security risk to the System or any users of the System, or (d) subject Trax or any third party to liability, then Trax may (but is not obligated to) immediately disable or suspend Customer's access to the System and Services (or take other actions as may be required to comply with applicable law) without any notice to Customer.

4. FEES, TERMS OF PAYMENT AND TAXES

4.1 Services Fees. In consideration of the Services, Customer shall pay Trax the amounts set forth in the respective SOW(s) (the "**Services Fees**"). All Services Fees incurred by Customer under this Agreement shall be: (a) paid in US Dollars (unless otherwise set forth in the respective SOW), and (b) paid within

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thirty (30) days from the date of issuance of the invoice to Customer. All Services Fees paid to Trax are non-refundable.

4.2 Late Payment. Trax may charge interest on overdue payment of Services Fees at a rate equal to the lower of: (a) one and one half percent (1.5%) per month; and (b) the maximum rate allowed by applicable law (the "**Interest**"). Such Interest shall be payable as of the due date for such overdue payment of Services Fees until payment is received by Trax (whether before or after judgment), accruing on a daily basis and compounding monthly, and shall be without prejudice to any other rights and remedies afforded to Trax under this Agreement and/or under any applicable law.

4.3 No Set-Off. Customer shall not be entitled to withhold or delay any payment due to Trax hereunder, and shall not set-off or deduct therefrom any amounts whatsoever.

4.4 Failure to Pay. Notwithstanding anything to the contrary, Customer's failure to pay, for any reason, Services Fees within thirty (30) days of the due date for such Services Fees, shall constitute a material breach by Customer of this Agreement and of the respective SOW, entitling Trax to terminate (or at Trax's sole discretion, suspend) this Agreement and any of the respective SOWs, without having to refer such breach to a dispute mechanism in accordance with the provisions of Section 11.2 below, and without prejudice to any other rights and remedies afforded to Trax under this Agreement and/or under any applicable law.

4.5 Taxes. Each party shall enter into this Agreement on the basis that resident state of Customer shall not levy any Taxes (as defined below) on the Services Fees for the Services provided by Trax under this Agreement. If, contrary to the foregoing, resident state of Customer imposes any Taxes, such Taxes shall be paid and borne by Customer. For the avoidance of doubt, all Services Fees invoiced under this Agreement shall be net and are exclusive of all current and future Taxes and shall be paid in full to Trax. In this regard, Trax shall take reasonable steps to support Customer in mitigating any Taxes on the Services Fees for the Services provided by Trax under this Agreement, if and to the extent that the same is possible under applicable laws and regulations, which if found to be applicable, the appropriate amount of Taxes shall be invoiced to and paid by Customer. For the purpose of this Agreement, "**Taxes**" means any and all present and future sales, use, personal property, customs, VAT, turnover, stamp, interest equalization, income, profits or gains, gross receipts, or other taxes, levies, imposts, duties, fees or withholdings together with any penalties, fines, surcharges or interest thereon imposed, levied, or assessed by, or otherwise payable to, any government entity or authority.

5. CUSTOMER CONTENT

5.1 Customer Responsibility. Customer shall be responsible to provide complete, timely and accurate Customer Content in the format and manner as required by Trax (in an SOW or otherwise) for the performance of the Services. Customer will be responsible for, and assumes the risk of, any problems resulting if the Customer Content does not conform to the foregoing. Trax will not be obligated or expected to validate any of the Customer Content for correctness, completeness or usability. Trax will notify Customer of nonconforming Customer Content and will afford Customer the opportunity to modify the Customer Content to satisfy Trax's requirements to perform the Services. If Trax becomes aware or believes that any Customer Content may be obscene, defamatory or fraudulent, violate any law or regulation or infringe any third party rights, including Intellectual Property Rights, Customer shall immediately remove such Customer Content from the System. Customer shall be responsible (at its expense and without any liability to Trax) to connect its devices to the System via the API in accordance with the instructions provided on Trax developers' site and as instructed by Trax.

5.2 Customer's Representations. Customer hereby represents, warrants and covenants that: (a) Customer is the owner or authorized licensee of the Customer Content (and Customer Application, if applicable), and has secured all necessary licenses, consents, authorizations and waivers for the use of the Customer Content, including all text, images, audio, video, logos and trademarks contained therein, and there are no conflicting claim(s) with respect to Customer's rights thereto; (b) the Customer Content and the use thereof do not infringe upon any third party's rights, including privacy rights, proprietary rights or any Intellectual Property Rights, and is not obscene, defamatory or fraudulent; (c) during the Term, and at all times during Customer's use of the Services, Customer shall comply with all laws, rules and regulations

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relating to the Customer Content; and (d) Customer Content will not include, and Customer will not otherwise submit through the System or Services, any personally-identifiable information, any sensitive data about personal characteristics or any other personal data. If Customer breaches any of the representations and warranties contained in this Section 5.2, Trax may, in addition to any other rights or remedies it may have in law or equity or under this Agreement, exercise its right to terminate this Agreement in accordance with the provisions of Section 10.3 below. Customer shall indemnify, defend, and hold harmless Trax, its affiliates, and their respective directors, officers, employees and agents, from and against any loss, cost, expense (including attorneys' fees) or liability, resulting from or arising out of any third party claim based on a breach or alleged breach of any representation or warranty contained in this Section 5.2. Trax shall be entitled to recover from Customer all amounts payable to the indemnified parties under this Section on their behalf.

5.3 Archival of Content. Trax shall be entitled to (a) delete or archive any images provided to Trax or uploaded to the System by Customer or otherwise in connection with the Services following the lapse of two (2) years as of the upload of such images; and (b) archive (with an option to retrieve) any data and information in connection with the Services, provided that such data archiving shall not interfere with ongoing Services.

6. REPRESENTATIONS AND WARRANTIES

6.1 By Both Parties. Each party hereby represents and warrants that:

(a) it has all requisite corporate power and authority to execute, deliver, and perform its obligations under this Agreement;

(b) it shall comply with all applicable laws, statutes, regulations and codes relating to anti-bribery and anti-corruption, including the U.S. Foreign Corrupt Practices Act and the U.K. Bribery Act 2010;

(c) this Agreement is a valid and legally binding obligation thereon, enforceable against it in accordance with its terms; and

(d) nothing contained in this Agreement, nor the performance thereof, shall place it in breach or default of any other obligation, commitment or agreement, or any law or regulation, by which it is bound or to which it is subject, or requires the consent of any person or entity.

6.2 By Customer. In addition, Customer hereby represents and warrants that (a) it is the ultimate end user of the Services and that it is aware that the Services may only be used for Customer's own internal business operations within the Territory; and (b) Customer shall not use the Services to conduct any illegal activity, or engage in any other activity which infringes upon the Intellectual Property Rights or other rights of Trax or any third party.

6.3 Disclaimer. EXCEPT ONLY TO THE EXTENT EXPRESSLY SET FORTH OTHERWISE IN THIS AGREEMENT OR IN AN SOW, THE SYSTEM, SERVICES, PROFESSIONAL SERVICES (IF APPLICABLE) AND ANY DELIVERABLES PROVIDED UNDER THIS AGREEMENT ARE PROVIDED BY TRAX ON AN "AS-IS" BASIS, AND ALL OTHER CONDITIONS, WARRANTIES (OF ANY KIND OR NATURE, WHETHER WRITTEN OR ORAL) OR OTHER TERMS WHICH MIGHT HAVE EFFECT BETWEEN THE PARTIES OR BE IMPLIED OR INCORPORATED INTO THIS AGREEMENT, WHETHER BY STATUTE, LAW OR OTHERWISE, ARE HEREBY EXCLUDED, INCLUDING THE IMPLIED CONDITIONS, WARRANTIES OR OTHER TERMS AS TO SATISFACTORY QUALITY, MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, THE USE OF REASONABLE SKILL AND CARE OR NON-INFRINGEMENT OF THIRD PARTY RIGHTS. In addition, Trax expressly disclaims any implied warranty with respect to liability for compliance with laws, regulations, or other official government releases applicable to Customer, which shall be the sole responsibility of Customer. Customer expressly agrees that Trax does not represent or warrant that the operation or use of the System or Services (or Professional Services, if applicable) will be accurate, uninterrupted or error-free or that the Trax Mobile Application will operate on mobile devices other than those tested by Trax. Customer acknowledges and understands that Trax uses a crowd-sourced workforce of individuals used solely to provide data by answering surveys and taking photos in-store, and Customer agrees that the Crowd shall not be deemed agents or contractors of Trax for purposes of this Agreement.

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6.4 Internet Failures. Customer acknowledges that Trax does not, and cannot, control the flow of data to or from Customer's Internet hosts and other portions of the Internet. Accordingly, Trax disclaims any and all liability resulting from or related to disruptions or impairments of Customer's connection to the Internet.

7. LIMITATION OF LIABILITY

7.1 Limitation of Liability. IN NO EVENT SHALL TRAX BE LIABLE FOR (A) ANY SPECIAL, INDIRECT OR CONSEQUENTIAL LOSSES AND/OR PUNITIVE DAMAGES, LOSS OF OR DAMAGE TO DATA, LOSS OF REVENUES, LOSS OF PROFITS, LOSS OF GOODWILL, AND/OR (B) ANY THIRD PARTY CLAIMS AGAINST CUSTOMER ARISING OUT OF OR IN ANY WAY RELATED TO THIS AGREEMENT AND/OR ANY SOW, REGARDLESS OF THE BASIS FOR LIABILITY OF ANY SUCH CLAIM (WHETHER BASED ON CONTRACT, TORT (INCLUDING NEGLIGENCE), BREACH OF STATUTORY DUTY OR OTHERWISE), EVEN IF INFORMED OF SUCH DAMAGES. TRAX'S MAXIMUM CUMULATIVE LIABILITY UNDER THIS AGREEMENT, INCLUDING LIABILITY ARISING OUT OF SERVICES PERFORMED AND/OR FROM ANY DELIVERABLES PROVIDED, WILL BE LIMITED TO THE TOTAL AMOUNT OF SERVICES FEES ACTUALLY PAID BY CUSTOMER TO TRAX UNDER THE SPECIFIC SOW FROM WHICH THE LIABILITY ARISES DURING THE TWELVE (12) MONTH PERIOD PRECEDING THE DATE ON WHICH THE EVENT GIVING RISE TO LIABILITY OCCURRED, EXCLUDING AMOUNTS ALREADY PAID BY TRAX UNDER THE SAME SOW FOR ANY PREVIOUS LIABILITIES. THE LIMITATIONS OF LIABILITY CONTAINED IN THIS AGREEMENT SHALL BE APPLICABLE EVEN IF ALL OTHER REMEDIES FAIL OF THEIR ESSENTIAL PURPOSE. The limitations of liability set forth in this Section 7 shall also apply to the benefit of Trax's and Trax's affiliates' directors, officers, employees and agents.

7.2 Exclusions. Notwithstanding the foregoing, nothing in this Agreement shall limit either party's liability for: (a) fraud, fraudulent misstatement or fraudulent misrepresentation; or (b) any liability which may not be excluded by law.

8. PROPRIETARY RIGHTS

8.1 System and Services. All right, title, and interest in and to the System, Services, API, Professional Services and Documentation, including all Intellectual Property Rights therein, are and shall remain the sole and exclusive property of Trax. Customer is granted no title or ownership rights in or to the System or Services. All rights not expressly granted to Customer in this Agreement are retained by Trax. Without derogating from the above, Trax reserves all right, title and interest in and to: (a) all designs, engineering details and other data pertaining to the System and Services, (b) all original works, computer programs, discoveries, inventions, patents, know-how, and techniques arising out of, and/or products developed as a result of, the Services, and (c) all data, information, text, images and other content that are uploaded to the System or generated by Trax or the Crowd in connection with the Services. The System and Services contain trade secrets of Trax, including the source code version and the specific design of the System.

8.2 Deliverables. Subject to Section 8.1, upon payment by Customer in full of all applicable Services Fees, all right, title, and interest in and to the Deliverables shall pass to and vest in Customer.

8.3 Customer Content. Customer will retain sole and exclusive ownership of the Customer Content and Customer Application (if applicable), including all Intellectual Property Rights related thereto. Customer hereby grants to Trax a non-exclusive, worldwide, fully paid-up and royalty-free, fully transferable and sublicensable right and license to use, modify, reproduce, publicly display, distribute, store, collect, copy, transmit, process, and create derivative works of the Customer Content (i) for the purpose of performing its obligations under this Agreement, including without limitation to provide and make available the Services to Customer during the Term; (ii) to provide support and help prevent or address technical or other Services-related issues; (iii) as otherwise permitted by Customer in writing; (iv) as required by applicable laws, rules, or regulations; and (v) to learn from and use the Customer Content to develop, create, enhance, improve, optimize, and maintain the Services and Trax's other related products and services, including without limitation, by learning from and using the Customer Content to train, enhance, improve, optimize, and maintain Trax's artificial intelligence and machine learning algorithms (and develop and create new algorithms) and create other derivative data (collectively "**Derivative Data**"). Such license will: (A) with respect to the Customer Content itself, be limited to the Term; and (B) with respect to any Customer Content that may be included in Trax's Derivative Data, be perpetual. Without limiting the generality of the foregoing, Customer hereby represents and warrants that it has all necessary

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rights and authorities to authorize Trax to collect, use, disclose and otherwise process Customer Content for the purposes described in this Agreement. For the avoidance of doubt, all data, information, text, images and other content that are uploaded to the System or generated by Trax or the Crowd, including via the use of Brand Watch and/or Brand Hunt, shall be solely and exclusively owned by Trax.

8.4 Infringement. Customer shall promptly notify Trax in writing of any (actual or foreseen) infringement or other violation of Trax's Intellectual Property Rights of which Customer becomes aware. Trax shall have the sole and exclusive right to protect and defend Trax's Intellectual Property Rights. Customer shall reasonably cooperate with Trax in the defense and protection of such Intellectual Property Rights.

8.5 Use of Marks for Marketing Purposes. Each party shall be entitled to use the other party's trademarks, trade names, logos and symbols in its marketing materials and activities.

8.6 Feedback. If Customer provides Trax with any suggestions, ideas, feedback, error identification or other information related to the System or Services or any other technology, products or services of Trax (a "**Feedback**"), Trax will be free to use and incorporate any and all such Feedback without any restrictions and without any obligation or compensation to Customer.

9. CONFIDENTIALITY

9.1 Confidential Information. As used in this Agreement, "**Confidential Information**" means information, in whatever form disclosed, provided by or on behalf of either party (the "**Disclosing Party**") to the other party (the "**Receiving Party**"), or to which the Receiving Party otherwise gains access, in the course of or incidental to the performance of this Agreement and the Services, and that is either marked or identified as confidential or proprietary or should reasonably be understood by the Receiving Party because of the circumstances of disclosure or the nature of the information itself to be proprietary and confidential to the Disclosing Party. Without derogating from the generality of the foregoing, the System shall be deemed as Confidential Information of Trax.

9.2 Non-Disclosure. The Receiving Party agrees to hold in strict confidence the Confidential Information of the Disclosing Party, and to refrain from copying, distributing, disseminating or otherwise disclosing such Confidential Information to any person or entity, other than to those of its employees, if and to the extent that such employees have a need to know such Confidential Information for the purpose of Receiving Party's performance of this Agreement, and provided that such employees are bound by written agreement to abide by all the obligations concerning such Confidential Information contained in this Agreement.

9.3 Non-Use. The Receiving Party undertakes not to use the Confidential Information of the Disclosing Party for any purposes other than for the purposes of performing this Agreement. Without derogating from the generality of the above, Customer undertakes not to use, directly or indirectly, the Confidential Information of Trax in the development and/or sale of products having the same or similar functions as the System, for itself or for a third party.

9.4 Exclusions. The confidentiality obligations of the Receiving Party regarding the Disclosing Party's Confidential Information shall not apply to Confidential Information which: (a) is or becomes part of the public domain without fault on the part of the Receiving Party; (b) is lawfully obtained from a source other than the Disclosing Party, which source is free of any obligation to keep the same confidential; (c) is previously known to the Receiving Party without an obligation to be kept confidential, as can be substantiated by its written and dated records; (d) was independently developed by the Receiving Party, without use of the Disclosing Party's Confidential Information, as can be substantiated by written and dated records; (e) is expressly released in writing from such obligations by the Disclosing Party; or (f) is required to be disclosed pursuant to law, regulation, judicial or administrative order, or request by a governmental or other entity authorized by law to make such request; provided, however, that the Receiving Party so required to disclose shall first notify the Disclosing Party (to the extent not prohibited from doing so) in order to enable it to seek relief from such requirement, render reasonable assistance requested by the Disclosing Party (at the Disclosing Party's expense) in connection therewith and disclose only that portion of the Confidential Information which is required to be disclosed by law as stated above.

9.5 Ownership. All Confidential Information is and will remain the property of the Disclosing Party. Disclosure of the Disclosing Party's Confidential Information to the Receiving Party shall not be

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construed as granting the Receiving Party any right, title, or license, whether express or implied, with respect to the Confidential Information or to its related Intellectual Property Rights or products (including improvements, modifications and/or derivatives related to the Confidential Information), other than the right to use the Confidential Information strictly in accordance with the provisions of this Agreement and the relevant SOW.

9.6 Disclaimer. Disclosing Party's Confidential Information is provided on an "as is" basis, with no warranty of any kind whatsoever. Without derogating from the generality of the above, Disclosing Party makes no warranties, whether express or implied, regarding the accuracy and/or completeness of the Confidential Information disclosed to Receiving Party hereunder.

9.7 Injunctive Relief. Each party acknowledges that its breach of this Section 9 may cause the other party extensive and irreparable harm and damage, and agrees that such party shall be entitled to seek injunctive relief to prevent use or disclosure of its Confidential Information not authorized by this Agreement, in addition to any other remedy available to such party under this Agreement or applicable law.

9.8 Return of Confidential Information. All copies of Confidential Information, regardless of form, shall, at the discretion of the Disclosing Party, either be destroyed or returned to the Disclosing Party, promptly upon the earlier of: (a) Disclosing Party's written request, or (b) expiration or termination for any reason of this Agreement. The Receiving Party shall confirm such destruction or return in writing to the Disclosing Party.

10. TERM AND TERMINATION

10.1 Term. This Agreement shall be effective for an initial term commencing on the Effective Date and shall continue for a period of two (2) years thereafter, unless terminated earlier in accordance with the provisions of this Section 10 (the "**Initial Term**"). Following the expiration of the Initial Term, this Agreement shall be automatically renewed for consecutive one-year periods, unless terminated by either party in accordance with the terms of this Section 10 (collectively, the "**Term**"). Any termination or expiration of this Agreement will not affect any accrued rights, remedies or liabilities of either party.

10.2 Termination for Convenience. Either party may terminate this Agreement and/or any SOW at any time and for any reason (or for no reason), by sending the other party no less than ninety (90) days' prior written notice to that effect.

10.3 Termination for Cause. Either party may terminate this Agreement and/or any SOW, upon written notice to the other party, in the event the other party materially breaches this Agreement and, if such breach is curable, fails to cure such breach within thirty (30) days of receipt of notice of the alleged breach. Further, this Agreement and/or any SOW may be terminated by either party on written notice, (a) if the other party becomes insolvent, ceases to do business as a going concern, makes an assignment, composition or arrangement for the benefit of its creditors, or is deemed or admits in writing its inability to pay debts (as defined in section 123 Insolvency Act 1986, or in any equivalent statute in other applicable jurisdictions), or (b) if proceedings are instituted by or against it for receivership or administration (in each case over the whole or a material part of its business or assets), winding-up or dissolution (other than in the course of a solvent reorganization or restructuring), provided that such proceedings are not dismissed within sixty (60) days from the initiation thereof.

10.4 Effects of Termination. Upon expiration or termination for any reason of this Agreement and/or any SOW, the following will apply: (a) the rights granted to Customer hereunder shall immediately terminate; (b) Trax will immediately cease performing the Services and will block the Customer's access to the System; (c) Customer shall delete all Trax Mobile Applications installed by Users on mobile and other devices and all copies thereof in its possession; and (d) termination shall be without prejudice to any rights and obligations accrued prior to the effective date of such termination, including Customer's obligation to pay the Services Fees.

10.5 Survival. The provisions of Sections 1 (Definitions), 3.2 (Use Restrictions), 4 (Fees, Terms of Payment and Taxes), 5.2 (Customer's Representations), 6.3 (Disclaimer), 7 (Limitation of Liability), 8 (Proprietary Rights), 9 (Confidentiality), 10.4 (Effects of Termination), 10.5 (Survival), 11 (Governing Law) and 12 (Miscellaneous) shall survive the expiration or termination of this Agreement for any reason. Expiration

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or termination for any reason of this Agreement shall cause the expiration or termination of any outstanding SOW, unless otherwise agreed in advance and in writing by the parties.

11. GOVERNING LAW

11.1 Governing Law. The validity, performance, construction and effect of this Agreement and any dispute or claim arising out of or in connection therewith or its subject matter or formation (including non-contractual disputes or claims) shall be governed by the laws of New York, without regard to conflict of law principles. The United Nations Convention on Contracts for the International Sale of Goods will not apply to this Agreement.

11.2 Dispute Resolution.

(a) The parties shall first undertake to resolve any dispute controversy or claim, including any question regarding its existence, validity or termination, arising out of or relating to this Agreement through good faith negotiations, to be carried out during thirty (30) day period as of either party's notice to the other regarding such dispute. The parties shall not make any claims for remedies based on an alleged breach of a party's obligations, assert any right to terminate, provide notice of termination, or commence any other dispute resolution process, without first endeavoring to resolve the matter through good faith negotiations as set out above.

(b) Any dispute arising out or relating to this Agreement or any SOW not resolved by good faith negotiations as specified above, shall be resolved exclusively and finally by binding arbitration to be carried out by the International Court of Arbitration of the International Chamber of Commerce ("**ICC**"), in accordance with the substantive law governing this Agreement, and the ICC's Rules of Arbitration (the "**Rules**"), which Rules are incorporated herein by reference in their entirety. Such arbitration shall be conducted in Singapore, in the English language, by a sole arbitrator appointed under the Rules. All proceedings, pleadings, discovery (oral and written), decisions, orders, awards and judgments resulting from the arbitration hereunder shall be confidential.

(c) The arbitrator's decision shall be final and binding upon the parties, provided however that a party may petition a competent court in Singapore, to: (i) vacate the arbitrator's decision on the grounds of the arbitrator's failure to abide by the provisions of this Agreement, or (ii) seek temporary injunctive or other temporary equitable relief without having to first initiate arbitration proceedings. Both parties submit to the exclusive jurisdiction of the aforementioned courts for the purposes mentioned in (i) and (ii) above, and hereby expressly and irrevocably consent and waive any objection to the entry of any award in any such jurisdiction.

(d) Judgment on the award or any other final or interim decision rendered by the arbitrator may be entered, registered or filed for enforcement in any court having jurisdiction over any of the parties, and the parties hereby expressly and irrevocably consent and waive any objection to the entry of any award in any such jurisdiction.

12. MISCELLANEOUS

12.1 Marketing. Trax and Customer agree to collaborate with each other with respect to public relations and marketing efforts aimed at building their respective brands, including issuing a joint press release referencing Customer's role in connection with the Services covered by this Agreement and a Customer-approved case study at the completion of the Services.

12.2 Entire Agreement. This Agreement, together with all SOW(s) and Exhibits, contains the complete agreement between the parties and supersedes any prior understandings, agreements, statements or representations (whether made innocently or negligently) by or among the parties, which relate to the subject matter of this Agreement. Without limiting the foregoing, the parties acknowledge and agree that the terms of this Agreement, together with all SOW(s) and Exhibits, supersede any conflicting terms in any purchase order or any other document issued by Customer, even if acknowledged in writing or assented to by Trax before, after or simultaneous with executing this Agreement, unless the parties specifically amend this Agreement in writing. Each party acknowledges that in entering into this Agreement it does not rely on any statement, representation, assurance or warranty (whether made

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innocently or negligently) that is not set out in this Agreement. In the event of any inconsistency or contradiction between the provisions of this Agreement and the provisions of an Exhibit, the provisions of this Agreement will prevail with respect to the subject matter of such inconsistency or discrepancy. Notwithstanding the above, by entering into this Agreement, Customer acknowledges and agrees to be bound by the terms and conditions of Trax's Privacy Policy (located at https://traxretail.com/privacy-policy/) and Trax' Data Processing Agreement for Customers (located at https://traxretail.com/wp-content/uploads/2018/11/Trax-DPA-for-Customers-signed.pdf), which are incorporated herein by reference, and as may be amended from time to time by Trax.

12.3 Headings. The headings of the Sections in this Agreement are for reference only and shall not be considered in the interpretation hereof. All references in this Agreement to Sections and Exhibits shall, unless otherwise provided, refer to Sections and Exhibits attached hereto.

12.4 Amendment. This Agreement shall not be amended without the express prior written consent of both parties hereto. Any amendment affected in accordance with this Section shall be binding upon the parties hereto.

12.5 Modifications to the System. Trax reserves the right, from time to time, to (a) modify or release subsequent versions of all or any portion of the System, (b) impose license keys, authorizations, or other means of controlling access to all or any portion of the System, and (c) change or discontinue all or any portion of the System, including making feature or functionality updates to the System. Trax will provide Customer with ninety (90) days' advance notice if Trax discontinues the System in its entirety.

12.6 Severability. In the event that any provision of this Agreement is held to be invalid or unenforceable by a court of competent jurisdiction, that provision shall be construed, limited, modified or deleted, to the extent necessary to eliminate any invalidity or unenforceability, and the remaining provisions of this Agreement shall remain in full force and effect.

12.7 Waiver. No waiver of any right or remedy under this Agreement shall be effective unless given in writing and signed by the authorized signatories of the waiving party. No waiver of any past or present right or remedy arising from any breach or failure to perform shall be deemed to be a waiver of any future right or remedy arising under this Agreement.

12.8 No Partnership. Nothing contained in this Agreement shall be construed as creating a partnership, joint venture, agency or other similar relationship between Trax and Customer, nor as granting either party the right, power, or authority (express or implied) to bind or otherwise create any duty or obligation for or on behalf of the other party. There shall be no employer-employee relationship between the parties' employees.

12.9 Assignment. Customer may not assign, subcontract, transfer, charge, declare a trust over or deal in any other manner with any of its rights and/or obligations under this Agreement or any SOW to any third party without the prior written consent of Trax, and any purported assignment or transfer without Trax's prior written consent shall be null and void. This Agreement shall be binding upon, and shall inure to the benefit of, the parties hereto and their respective successors and permitted assigns.

12.10 Force Majeure. A party hereto shall not be liable for any delay, loss and/or damage resulting from causes beyond the control thereof, including, but not limited to, acts of God, acts of a public enemy, acts of any governmental or quasi-governmental agency or any of their political subdivisions, fire, flood, epidemics, explosion, power or telecommunications irregularities, quarantine restrictions; strikes or other labor unrest, earthquakes, civil commotion or revolutions, war, terrorist attack, freight embargoes, unusually severe weather conditions, or any other cause that was not reasonably foreseeable by such party on the date of execution of this Agreement. Notwithstanding the above, the provision of this Section 12.10 shall not apply to Customer's obligation to pay Trax the amounts due to it under this Agreement and/or any SOW.

12.11 No Solicitation. During the Term and for a period of six (6) months following the expiration or termination thereof for any reason, Customer shall not (a) solicit to hire or otherwise employ any of the executive officers, technical personnel and/or other employees of Trax or of Trax's subcontractors, nor (b)

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solicit suppliers and/or customers of Trax to cease their engagement with Trax. Solely for purposes of this Section 12.11, Trax's independent subcontractors shall be deemed as Trax's employees.

12.12 Remedies. All remedies, either under this Agreement or by law otherwise affording to any party, shall be cumulative and not alternative.

12.13 Notices. All notices required or permitted under this Agreement shall be in writing, will reference this Agreement and will be deemed delivered upon actual delivery by a courier service to the other party, with written verification of receipt. All communications will be sent to the parties' respective addresses set forth in the heading of this Agreement. Such notice or other communications shall be deemed to have been given on the date confirmed as the actual date of delivery by the courier service if sent by such service.

12.14 Language. The Documentation and all correspondence, notices and technical documentation exchanged between the parties under and/or in accordance with this Agreement or any SOW, and the Services shall be provided in the English language only, unless otherwise agreed by the parties in writing.

12.15 No Third-Party Beneficiaries. This Agreement does not create any obligation of a party to any third party, nor shall it be deemed to create any rights or causes of action on behalf of any third party.

12.16 Counterparts. This Agreement may be executed in any number of counterparts, including by means of facsimile or PDF, with the same effect as if all parties had signed the same original document.

[Signature page follows]

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NC-JLI-Consent Judgment
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IN WITNESS WHEREOF, the parties hereto have signed this Agreement as of the date indicated below:

TRAX RETAIL, INC.	**[……]**
By: _____	By: _____
Name: _____	Name: _____
Title: _____	Title: _____
Date: _____	Date: _____

[Signature page to Services Agreement]

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EXHIBIT A

SOW 1

[to be attached here]

CONFIDENTIAL JLI41686435
NC-JLI-Consent Judgment
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EXHIBIT B

CHANGE REQUEST No. […]

Pursuant to Section 2.4 of the Services Agreement by and between **TRAX RETAIL, INC.** ("**Trax**"), and **[……]** (the "**Customer**"), dated as of …… (the "**Agreement**"), which is specifically incorporated herein by this reference, certain change(s) to Services is hereby being requested by Customer, as below:

Terms not defined herein shall have the meanings ascribed to them in the Agreement or the relevant SOW, as applicable.

Date of Request:		Originator:	
Reason for Change:			
Details of Change:			
Effective date of Change (subject to approval by Trax): Price Change (to be completed by Trax)			

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Any other consequences of, or matters relating to, the Change:
Effect on the Agreement YES/NO (if "YES" provide full details)

Trax Authorized Representative	Customer Authorized Representative
SIGNATURE:	SIGNATURE:
DATE:	DATE:

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EXHIBIT C

PROFESSIONAL SERVICES TERMS AND CONDITIONS

THE TERMS AND CONDITIONS SET FORTH BELOW ARE THE TERMS AND CONDITIONS UNDER WHICH TRAX WILL PROVIDE PROFESSIONAL SERVICES TO CUSTOMER IN CONNECTION WITH CUSTOMER'S USE OF THE SYSTEM AND SERVICES. TO RECEIVE THE PROFESSIONAL SERVICES, CUSTOMER MUST AGREE TO BE BOUND BY THESE TERMS AND CONDITIONS.

1. Scope. Customer and Trax agree that this Exhibit constitutes the complete and exclusive statement of the mutual understanding of the parties, and supersedes all previous written, oral, and other agreements and communications, relating to the subject of this Exhibit. No terms or conditions of any purchase order, work order, acknowledgment or other business form of Customer will modify or add additional terms to this Exhibit, and Trax expressly rejects any terms and conditions contained in any such Customer purchase order, work order, acknowledgment or other business form that are different from or in addition to those contained in this Exhibit. For the avoidance of doubt, the terms and conditions of the Services Agreement to which this Exhibit is attached (the "**Services Agreement**") govern Customer's use of Trax's System and Services, including in connection with the Professional Services. Capitalized terms used in this Exhibit will have the meanings ascribed to them in the Services Agreement unless otherwise defined herein.

2. Professional Services. Customer and Trax may from time to time agree on the provision of Professional Services by executing a work order (a "**Work Order**") in a form acceptable to Trax. Professional Services may include the development by Trax of software (a "**Developed Software**"), which is a modification or customization of, a derivative work based on, or otherwise intended for use in conjunction with, any part of the System, the provision by Trax of certain technical assistance, including with respect to integration, customization or data migration in connection with the System or Developed Software or the provision of other services by Trax. The Work Order will also set forth, as applicable, all relevant details of and specifications for the Developed Software and other Work Product (as defined below) to be delivered by Trax in its performance of the Professional Services. Trax agrees to use commercially reasonable efforts to perform (or cause to be performed) for Customer the Professional Services. Customer will provide in a professional manner, and at no cost to Trax, assistance, cooperation, complete and accurate information and data, equipment, computer and telecommunications facilities, programs, files, documentation, test data, sample output, a suitable work environment and other resources requested by Trax to enable it to perform the Professional Services (collectively, "**Assistance**"). Trax will not be liable for any deficiency in performing the Professional Services if such deficiency results from Customer's failure to provide full Assistance as required hereunder.

3. Proprietary Rights.

3.1 Ownership. As used in this Exhibit, the term "**Work Product**" means all materials, software, tools, data, inventions, works of authorship and other innovations of any kind, including, without limitation, any Developed Software or other deliverable, that Trax (or personnel working for or through Trax) may make, conceive, develop or reduce to practice, alone or jointly with others, in the course of performing the Professional Services. Customer agrees that all Work Product will be the exclusive property of Trax and hereby assigns all rights, interest and title it may have in the Work Product, including all related Intellectual Property Rights and other proprietary rights, to Trax.

3.2 Rights to Developed Software. Unless otherwise expressly specified in the applicable Work Order, subject to Customer's performance of its obligations hereunder, any Developed Software will be deemed part of the System and Customer will be granted with rights to use such Developed Software on the same terms and conditions as such is provided to Customer pursuant to the Services Agreement. Without limiting the foregoing, except as otherwise expressly provided herein or in the Services Agreement, Trax will retain all right, title and interest in and to any Developed Software.

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3.3 Rights to Other Work Product. Unless otherwise expressly specified in the applicable Work Order, subject to Customer's performance of its obligations hereunder, Trax will grant to Customer a worldwide, non-exclusive, non-transferable, non-sublicensable, revocable right to use, within Customer's enterprise only, any Work Product (other than Developed Software) solely for Customer's internal business purposes.

3.4 Restrictions. Customer will not, without the written consent of Trax: (a) decompile or otherwise reverse engineer any Work Product or any portion thereof; (b) rent, lease, sublicense, sell, transfer or otherwise grant rights in or to the Work Product (in whole or in part) to any third party in any form; or (c) use the Work Product for commercial time-sharing or service bureau use.

3.5 Reservation of Rights. Except as otherwise expressly provided in this Exhibit or in the applicable Work Order, nothing in this Agreement (including any Work Orders) or in the Services Agreement will be deemed to grant, directly or by implication, estoppel or otherwise, any right or license with respect to any technology or other Intellectual Property Rights, and each party retains all right, title and interest in and to its respective technologies and other Intellectual Property Rights.

4. Fees. Unless otherwise indicated in a Work Order, all Professional Services will be performed on a time-and-materials basis at Trax's then-current fees and charges therefor. Accordingly, Customer will pay Trax for all time spent performing the Professional Services, plus the cost of any materials, taxes, travel, lodging, communications, shipping charges and out-of-pocket expenses incurred by Trax in connection with providing the Professional Services. All such fees and costs will be invoiced monthly and will be payable within thirty (30) days of the date of invoice. Any amounts payable by Customer under this Exhibit that remain unpaid after the due date will be subject to a late charge equal to one and one-half percent (1.5%) per month from the due date until such amount is paid or the maximum amount allowable by law, whichever is less. The payment of any such fees shall be made in accordance with and subject to the provisions of Section 4 of the Services Agreement.

5. Termination. Trax may terminate a Work Order immediately upon notice to Customer if the Customer breaches or is in default of any obligation hereunder, including the failure to make any payment when due, which default is incapable of cure or which, being capable of cure, has not been cured within thirty (30) days after receipt of written notice from Trax. Upon such termination, Trax will immediately cease performing any Professional Services and Customer will pay Trax any amounts due for the Professional Services actually rendered. Sections 3.1, 3.4 and 5 of this Exhibit will survive the termination of a Work Order or the Services Agreement.

6. Confidentiality. All Work Product and any technology, ideas, algorithms or information derived therefrom or otherwise disclosed by Trax to Customer in connection with the Professional Services will constitute Confidential Information of Trax and be subject to the confidentiality obligations set forth in the Services Agreement.

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